

remedy against perjurers is simply part of the price that is paid for witnesses who are free from intimidation by the possibility of civil liability for what they say.” (*Ibid.*)

“The usual formulation is that the privilege applies to any communication (1) made in judicial or quasi-judicial proceedings; (2) by litigants or other participants authorized by law; (3) to achieve the objects of the litigation; and (4) that have some connection or logical relation to the action.” (*Silberg*, *supra*, 50 Cal.3d at 212.)

As outlined by Defendants, all of Plaintiff’s claims relate to privileged publications made by Moving Defendants. First, each of the statements was made during the Underlying Action – i.e. during a judicial proceeding. Second, they were made by ‘other participants authorized by law’ in that they were made by Heather Breen’s counsel of record during that proceeding. Third, all the alleged statements relate to the Moving Party’s representation of Heather Breen and were related to attempting to achieve their goals therein. Finally, each of the alleged communications had some connection to the Underlying Action.

As all the conduct alleged is privileged under section 47(b), there is no way Plaintiff can establish a “probability of success” on the merits. Accordingly, the Court need not address the other arguments made by Defendant showing that Plaintiff has not shown and cannot show that he is likely to prevail.

Attorneys’ Fees

A “prevailing defendant on a special motion to strike shall be entitled to recover that defendant’s attorney’s fees and costs.” (Code Civ. Proc. § 425.16(c).) The award of attorney fees is “mandatory.” (*Ketchum v. Moses* (2001) 24 Cal.4th 1122, 1131.) As Defendants are the prevailing parties on this anti-SLAPP motion, they are entitled to their attorney fees. As noted by Defendants, they will file a separate noticed motion for those fees. The Court will address the propriety of the amount of fees at that time.

Conclusion

Based on the above, Moving Defendants’ Special Motion to Strike is **granted**.

11. 9:00 AM CASE NUMBER: L24-04434

CASE NAME: ANHEUSER-BUSCH, LLC VS. CHRISTINA PABST

***MOTION/PETITION TO COMPEL ARBITRATION MOTION TO COMPEL INDIVIDUAL ARB AND DISMISS OR STAY CROSS COMP FILED BY PLN ON 12/19/25**

FILED BY: ANHEUSER-BUSCH, LLC

TENTATIVE RULING:

Plaintiff Anheuser’s Motion to Compel its former employee Christina Pabst to submit her claims to **individual** arbitration is granted. Ms. Pabst’s Cross-Complaint shall otherwise be stayed in its entirety to allow the arbitration to proceed to completion.

When Ms. Pabst applied for employment with Anheuser, she agreed on her application that resolution of any claims between her and Anheuser would be subject to final and binding arbitration and that arbitration would be the exclusive method she and Anheuser would have for final and binding resolution of claims covered by the Company’s Dispute Resolution Program. When she was

made an offer of employment, the offer letter reiterated that the DRP would be a term and condition of employment and her exclusive remedy for any employment claims she might have. She subsequently accepted and began her employment with the company.

12. 9:00 AM CASE NUMBER: MSC19-02639
CASE NAME: VEGA VS GAGNI
***HEARING ON MOTION IN RE: RELIEF FROM STAY AND GFS BTWN BAES AND VEGA**
FILED BY: BAY AREA ESCROW SERVICES
TENTATIVE RULING:

Granted – Based on Non-opposition of Defendant Bay Area Escrow Services.

13. 9:00 AM CASE NUMBER: MSC20-02420
CASE NAME: ROBINSON VS ANTIOCH UNIFIED SCHOOL
***HEARING ON MOTION IN RE: BIFURCATE TRIAL**
FILED BY: ANTIOCH UNIFIED SCHOOL DISTRICT
***TENTATIVE RULING:**

Appearance required by Attorneys who will actually “try” the case.

Appearances may be at 10:00 AM at the time set for the issue Conference.

14. 9:00 AM CASE NUMBER: MSC21-00470
CASE NAME: DOTSON VS CINEMARK USA INC.
***HEARING ON MOTION IN RE: QUASH SUPPLEMENTAL EXPERT DISCLOSURES AND ISSUE**
PROTECTIVE ORDER
FILED BY: CENTURY THEATERS, INC.
TENTATIVE RULING:

The Court has received an ex parte request which is unopposed to continue the trial based on unavailability of counsel. The Motion to Continue is granted and the matter is set for trial setting conference on July 27, 2026, 8:30AM, D.32.

The Motion to Quash is, therefore, not ruled on and the parties are ordered to meet and confer and resolve the “expert witness” issues in light of the continuance.

ADD-ON Law & Motion